

OFFICE OF THE SECRETARY

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June 19, 2019

The Honorable Wynne S. Carvil
Judge of the Superior Court
County of Alameda
1225 Fallon Street
Oakland, CA 94612

Re: Michael Antoine Wortham
CDCR No: H69234
Case No: H23222
Date of Sentence: April 11, 1997

Dear Honorable Wynne S. Carvil:

The purpose of this letter is to provide the court with the authority to resentence inmate Michael Wortham, pursuant to Penal Code (PC) Section 1170, Subdivision (d)(1). PC Section 1170, Subdivision (d) provides that, upon recommendation of the Secretary of the California Department of Corrections and Rehabilitation (CDCR), the court may recall a previously ordered sentence, provided the new sentence is no greater than the initial sentence.

Inmate Wortham's most recent disciplinary action included one Administrative, Rules Violation Report (RVR) dated May 25, 2012, for Disobeying/Refusing Orders, and one Serious RVR dated September 5, 2009, for Fighting. However, a review of inmate Wortham's file reveals his participation in and not limited to Self-Help Groups such as Criminals and Gang Members Anonymous, Narcotics Anonymous, and Alcoholic Anonymous. Inmate Wortham also signed a CDCR Form, 128-B6, STG 5 dated June 29, 2016, renouncing his association and allegiance to the 415, Kumi, STG II.

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Having reviewed the enclosed documentation it appears that inmate Wortham's sentence warrants the attention of the court. Pursuant to PC Section 1170, Subdivision (d), as the Secretary, I recommend the inmate's sentence be recalled and that he be resentenced.

Sincerely,



RALPH M. DIAZ
Secretary

Enclosures:

Abstract of Judgment
Minute Order
Court Information-Charging Documents
Cumulative Case Summary

cc: Chad Finke, County Court Executive Officer
Alameda County District Attorney's Office
Alameda County Public Defender's Office